

Hillpath Capital Fund IV

Selected LPA Clauses and Synthetic Investor Side Letter

Extracted clauses for QA only. This synthetic summary is not legal advice and does not represent an actual fund document.

Article 5 - Management fees and expenses

Section 5.2. The Partnership shall pay the Manager a fee equal to 2.00% per annum of aggregate Commitments through the end of the Investment Period and 1.50% per annum of aggregate acquisition cost of unrealized investments thereafter.

Section 5.5. Eighty percent (80%) of transaction, monitoring, break-up and director fees received by the Manager or its Affiliates shall offset the next management fee otherwise payable. The remaining twenty percent may be retained by the Manager.

Section 5.8. Organizational Expenses shall not exceed \$1,250,000, excluding placement fees, extraordinary litigation, and expenses approved by the Advisory Committee.

Article 7 - Distributions and carried interest

Section 7.3. Distributable proceeds shall first return contributed capital and the 8% Preferred Return to all Partners on an aggregate Partnership basis, after which the General Partner shall receive a catch-up and 20% carried interest.

Section 7.4. Notwithstanding Section 7.3, the General Partner may distribute realized proceeds investment by investment after reserving 30% of estimated carried interest in escrow. The escrow is tested annually and released when aggregate net asset value plus distributions exceeds contributed capital and the Preferred Return.

Review note: Section 7.4 introduces deal-by-deal mechanics despite the PPM's whole-of-fund description, making the operative waterfall hybrid rather than purely European.

Article 9 - Governance

Section 9.1 - Key Person. The Investment Period shall be suspended only if both Evelyn Hart and Marcus Lee cease devoting substantially all business time to the Partnership. A majority in interest may resume the Investment Period within 120 days. No named successor automatically cures the event.

Section 9.4 - Removal for Cause. Limited Partners holding 75% of commitments may remove the General Partner following final adjudication of fraud, willful misconduct, or material breach that remains uncured for 45 days.

Section 9.5 - No-Fault Termination. Limited Partners holding 80% of commitments may terminate the Investment Period without cause. Upon termination, management fees step down but carried interest is not reduced for unrealized investments held at the termination date.

Section 9.8 - LPAC. The Advisory Committee may approve conflicts, valuation-policy exceptions, affiliate transactions, and the second one-year extension. LPAC approval is advisory except where this Agreement expressly states otherwise.

Article 12 - Transfers, reporting, and fiduciary standard

Section 12.2. Transfers require General Partner consent, which may be withheld in its sole discretion, plus completion of AML, tax, and securities-law review. The General Partner may charge reasonable transfer expenses without a stated cap.

Section 12.6. Quarterly unaudited statements are due within 60 days; annual audited statements within 120 days. Capital-account statements will show contributions, distributions, fees, and ending NAV.

Section 12.9. To the maximum extent permitted by law, fiduciary duties are modified so that the General Partner may consider its own interests and those of Affiliates when resolving conflicts approved by the LPAC.

Synthetic side letter - North County Retirement System

Section	Obligation
1 - Fee discount	Management fee reduced by 0.25% for so long as NCRC maintains at least \$35 million of commitments.
2 - MFN	Within 45 days after final close, provide an election package covering more favorable terms granted to investors committing \$50 million or less. Regulatory, tax, and strategic-investor provisions are excluded.
3 - Co-invest	Use commercially reasonable efforts to offer NCRC its pro rata share of co-investments exceeding \$40 million of aggregate equity need. No allocation is guaranteed.
4 - Reporting	Deliver quarterly ESG incident and portfolio-diversity reporting within 55 days after quarter-end, five days earlier than the standard quarterly package.
5 - Excuse right	NCRC may be excused from investments involving thermal coal revenue above 10% after providing written notice within 10 business days of the investment notice.
6 - Transfer	Consent shall not be unreasonably withheld for transfers to another North County governmental plan, subject to AML and tax review.
7 - Verification	The Manager shall certify compliance with Sections 1, 4, and 5 in each fourth-quarter investor report.

Quarterly monitoring cues: verify the discounted fee calculation; log the MFN package and election deadline; compare co-invest offers with eligible transactions; confirm ESG reporting by day 55; test excuse-right notices; and obtain the annual certification in the fourth-quarter report.